there was yet no evidence against him, and he had been released each time. They further added that they saw no apparent reason for him to be deported when he himself was leaving the country. During the course of the argument, the Additional Solicitor-General referred to us petitioners as ‘leftist activists’ who were always trying to create trouble for the State. Finally, he argued that the government wanted to deport Qays so that he would not be able to go as a free man and that this should become a part of his record. He insisted that the government would deport Qays and send his luggage later.

It is tragic that the Hon’ble bench finally allowed the government to deport Qays, although it had found no evidence in the confidential files to warrant his deportation. However, when the petitioners passionately argued that Qays be allowed to sort his own luggage, since the research material collected over so many years could easily be lost otherwise, the court permitted him to collect his luggage at Parmanand Colony in the presence of a lawyer designated by the court. The court also sought assurance from the Union of India and the Delhi Police about Qays’s safety till his departure on 14 November 2002, which assurance was given by the State. The petitioners got permission from the court to be present at the time when Qays was to collect his baggage from his residence, and this was done on the evening of the following day, 12 November 2002.

Qays left on the air ticket that he himself had booked and paid for, but with the following observations (made by the FRRO on the day that Qays had gone to that office for permission to leave) inscribed on his passport:

> The holder of this passport is being deported from India due to his undesirable activities by FRRO Delhi vide order No. 1408/ For (I.M. Cell) dated 7/11/02.

The effects of the injustice done to Qays did not disappear with his return to Jordan. He has had to face many problems there arising out of his deportation. He still hasn’t had any explanation for what he had to suffer, leave alone an apology.

The case of Qays Al Kareem starkly reveals the subversion of democracy in the name of fighting terrorism, and the extent to which our universities have become communalized. The structures of authority are either in league with communal forces or else they succumb to communal pressures. It is noteworthy that Qays received minimal or no support to his letters of complaint about his harassment. On the contrary, the warden forwarded to the